Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1089
Claimant:	Mark Dixon
Adjuster:	Christopher Wong

February 13, 2024 - Claim opened for side impact at intersection. Insured reports vehicle struck on driver side by third-party vehicle that failed to yield at signalized intersection. Police report requested. Photos of both vehicles on file. Claimant reports back strain and has retained counsel. All further contact to go through attorney's office.

February 14, 2024 - Received letter of representation from claimant's attorney. Liability disputed in part; third party's insurer has acknowledged partial fault. Reviewing signal timing data and witness statement. Requested medical authorization and prior records through counsel.

February 22, 2024 - Medical records received showing diagnosis of lumbar strain with muscle spasm. Treating physician recommends physical therapy twice weekly for six weeks. No fractures or imaging abnormalities noted. Flagged file for bodily injury evaluation pending completion of treatment.

February 24, 2024 - Spoke with claimant's attorney regarding demand package. Attorney requests review of property damage and rental vehicle costs in addition to bodily injury. Advised that rental coverage is under insured's policy and will be reviewed against liability findings. Diary set for follow-up after therapy records are received.

February 26, 2024 - Liability position updated to reflect third party's admitted failure to yield. Reserves reviewed and adjusted for bodily injury and property damage. Supervisor notified. Claim remains open pending completion of medical treatment and receipt of updated billing from counsel.

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Bodily Injury Unit

Recorded Statement

Claim number:	C-1089
Statement of:	Mark Dixon
Taken by:	Christopher Wong
Date:	February 20, 2024

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision at the intersection in Baytown. Can you confirm you're comfortable continuing on the recording?

A: Yes, that's fine.

Q: Please describe in your own words how the collision happened.

A: I was driving through the intersection on a green light. I was going at a normal speed, maybe thirty-five. A pickup coming from my right didn't stop and hit the driver's side of my car.

Q: Did you see the pickup before the impact?

A: Not really. I glanced to my right and saw something moving, but there wasn't time to react.

Q: Were there any traffic signals or signs that you noticed at the time?

A: My light was green. I'm pretty sure of that because I had just come from the light behind me and it had been green for a while.

Q: Were you injured in the collision?

A: My lower back hurts. It tightened up right away, and by the next morning it was pretty stiff. I went to urgent care and they said it was a strain.

Q: Have you received any treatment since then?

A: I've been doing physical therapy twice a week and taking muscle relaxers when it gets bad. I still can't lift anything heavy without pain.

Q: Did you have any pain or problems with your back before this collision?

A: No, not that I can think of. I've had a little soreness after long workdays, but nothing I had to see a doctor about.

Q: Is there anything else you'd like to add?

A: Just that I was following the rules and I want to get my car repaired and my back taken care of.

Q: Thank you. That concludes the statement.